

## Syllabus

do, see, *e. g.*, *United States v. Booker*, 543 U. S. 220, and prior convictions in only two States are potentially affected here. Pp. 105–109.

JUSTICE GORSUCH, joined by JUSTICE GINSBURG and JUSTICE BREYER, concluded in Part IV–A that *Apodaca* lacks precedential force. Treating that case as precedential would require embracing the dubious proposition that a single Justice writing only for himself has the authority to bind this Court to already rejected propositions. No prior case has made such a suggestion. Pp. 101–105.

JUSTICE GORSUCH, joined by JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR, concluded in Parts IV–B–2 and V that Louisiana’s and Oregon’s reliance interests in the security of their final criminal judgments do not favor upholding *Apodaca*. Worries that defendants whose appeals are already complete might seek to challenge their nonunanimous convictions through collateral review are overstated. Cf. *Teague v. Lane*, 489 U. S. 288. *Apodaca*’s reliance interests are not boosted by Louisiana’s recent decision to bar the use of nonunanimous jury verdicts. A ruling for Louisiana would invite other States to relax their own unanimity requirements, and Louisiana continues to allow nonunanimous verdicts for crimes committed before 2019. Pp. 109–111.

JUSTICE THOMAS concluded that Ramos’ felony conviction by a non-unanimous jury is unconstitutional because the Sixth Amendment’s protection against nonunanimous felony guilty verdicts applies against the States through the Privileges or Immunities Clause of the Fourteenth Amendment, not the Due Process Clause. Pp. 132–140.

GORSUCH, J., announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–A, III, and IV–B–1, in which GINSBURG, BREYER, SOTOMAYOR, and KAVANAUGH, JJ., joined, an opinion with respect to Parts II–B, IV–B–2, and V, in which GINSBURG, BREYER, and SOTOMAYOR, JJ., joined, and an opinion with respect to Part IV–A, in which GINSBURG and BREYER, JJ., joined. SOTOMAYOR, J., filed an opinion concurring as to all but Part IV–A, *post*, p. 111. KAVANAUGH, J., filed an opinion concurring in part, *post*, p. 115. THOMAS, J., filed an opinion concurring in the judgment, *post*, p. 132. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., joined, and in which KAGAN, J., joined as to all but Part III–D, *post*, p. 140.

*Jeffrey L. Fisher* argued the cause for petitioner. With him on the briefs were *G. Ben Cohen*, *Brian H. Fletcher*, *Pamela S. Karlan*, and *Yaira Dubin*.

*Elizabeth B. Murrill*, Solicitor General of Louisiana, argued the cause for respondent. With her on the brief were

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*Jeff Landry*, Attorney General, *Michelle Ghetti*, Deputy Solicitor General, *Colin Clark*, Assistant Attorney General, *Donna Andrieu*, *William S. Consovoy*, and *Jeffrey M. Harris*.\*

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\*Briefs of *amici curiae* urging reversal were filed for the State of New York et al. by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Steven C. Wu*, Deputy Solicitor General, and *Ester Murdukhayeva*, Assistant Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Karl A. Racine* of the District of Columbia, *Kwame Raoul* of Illinois, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Thomas J. Donovan, Jr.*, of Vermont, and *Mark R. Herring* of Virginia; for the American Bar Association by *Robert M. Carlson*, *Paul R. Q. Wolfson*, and *Eric L. Hawkins*; for the American Civil Liberties Union et al. by *David D. Cole*, *Brian W. Stull*, *Cassandra Stubbs*, *Katie Schwartzmann*, and *Bruce Hamilton*; for Innocence Project New Orleans et al. by *Emily Maw*; for the Institute for Justice by *Wesley P. Hottot* and *Michael E. Bindas*; for Law Professors et al. by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for the NAACP Legal Defense & Educational Fund, Inc., by *Daniel S. Harawa*, *Sherrilyn A. Ifill*, *Janai S. Nelson*, *Samuel Spital*, and *Kristen A. Johnson*; for the National Association of Criminal Defense Lawyers by *Timothy P. O'Toole* and *Barbara E. Bergman*; for Prominent Current and Former State Executive and Judicial Officers et al. by *Shaun S. McCrea* and *Jeff Ellis*; and for The Rutherford Institute by *Michael J. Lockerby*, *David A. Hickerson*, *Jay N. Varon*, and *John W. Whitehead*.

Briefs of *amici curiae* urging affirmance were filed for the State of Oregon by *Ellen F. Rosenblum*, Attorney General of Oregon, *Benjamin Gutman*, Solicitor General, and *Doug M. Petrina* and *Christopher A. Perdue*, Assistant Attorneys General; and for the State of Utah et al. by *Sean D. Reyes*, Attorney General of Utah, *Tyler R. Green*, Solicitor General, *Thomas B. Brunker*, Deputy Solicitor General, and *John J. Nielsen* and *Nathan H. Jack*, Assistant Solicitors General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Derek Schmidt* of Kansas, *Doug Peterson* of Nebraska, *Mike Hunter* of Oklahoma, *Isaias Sanchez-Baez* of Puerto Rico, *Jason Ravensborg* of South Dakota, *Herbert Slatery III* of Tennessee, *Ken Paxton* of Texas, and *Patrick Morrissey* of West Virginia.

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JUSTICE GORSUCH announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–A, III, and IV–B–1, an opinion with respect to Parts II–B, IV–B–2, and V, in which JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR join, and an opinion with respect to Part IV–A, in which JUSTICE GINSBURG and JUSTICE BREYER join.

Accused of a serious crime, Evangelisto Ramos insisted on his innocence and invoked his right to a jury trial. Eventually, 10 jurors found the evidence against him persuasive. But a pair of jurors believed that the State of Louisiana had failed to prove Mr. Ramos’s guilt beyond reasonable doubt; they voted to acquit.

In 48 States and federal court, a single juror’s vote to acquit is enough to prevent a conviction. But not in Louisiana. Along with Oregon, Louisiana has long punished people based on 10-to-2 verdicts like the one here. So instead of the mistrial he would have received almost anywhere else, Mr. Ramos was sentenced to life in prison without the possibility of parole.

Why do Louisiana and Oregon allow nonunanimous convictions? Though it’s hard to say why these laws persist, their origins are clear. Louisiana first endorsed nonunanimous verdicts for serious crimes at a constitutional convention in 1898. According to one committee chairman, the avowed purpose of that convention was to “establish the supremacy of the white race,” and the resulting document included many of the trappings of the Jim Crow era: a poll tax, a combined literacy and property ownership test, and a grandfather clause that in practice exempted white residents from the most onerous of these requirements.<sup>1</sup>

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<sup>1</sup> Official Journal of the Proceedings of the Constitutional Convention of the State of Louisiana 374 (H. Hearsey ed. 1898); Eaton, The Suffrage Clause in the New Constitution of Louisiana, 13 Harv. L. Rev. 279, 286–287 (1899); *Louisiana v. United States*, 380 U. S. 145, 151–153 (1965).

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Nor was it only the prospect of African-Americans voting that concerned the delegates. Just a week before the convention, the U. S. Senate passed a resolution calling for an investigation into whether Louisiana was systemically excluding African-Americans from juries.<sup>2</sup> Seeking to avoid unwanted national attention, and aware that this Court would strike down any policy of overt discrimination against African-American jurors as a violation of the Fourteenth Amendment,<sup>3</sup> the delegates sought to undermine African-American participation on juries in another way. With a careful eye on racial demographics, the convention delegates sculpted a “facially race-neutral” rule permitting 10-to-2 verdicts in order “to ensure that African-American juror service would be meaningless.”<sup>4</sup>

Adopted in the 1930s, Oregon’s rule permitting nonunanimous verdicts can be similarly traced to the rise of the Ku Klux Klan and efforts to dilute “the influence of racial, ethnic, and religious minorities on Oregon juries.”<sup>5</sup> In fact, no one before us contests any of this; courts in both Louisiana and Oregon have frankly acknowledged that race was a motivating factor in the adoption of their States’ respective non-unanimity rules.<sup>6</sup>

We took this case to decide whether the Sixth Amendment right to a jury trial—as incorporated against the States by way of the Fourteenth Amendment—requires a unanimous verdict to convict a defendant of a serious offense.<sup>7</sup> Louisiana insists that this Court has never definitively passed on

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<sup>2</sup>See 31 Cong. Rec. 1019 (1898).

<sup>3</sup>*Strauder v. West Virginia*, 100 U. S. 303, 310 (1880).

<sup>4</sup>*State v. Maxie*, No. 13–CR–72522 (La. 11th Jud. Dist., Oct. 11, 2018), App. 56–57; see also Frampton, *The Jim Crow Jury*, 71 Vand. L. Rev. 1593 (2018).

<sup>5</sup>*State v. Williams*, No. 15–CR–58698 (C. C. Ore., Dec. 15, 2016), App. 104.

<sup>6</sup>*Maxie*, App. 82; *Williams*, App. 104.

<sup>7</sup>Under existing precedent and consistent with a common law tradition not at issue here, a defendant may be tried for certain “petty offenses” without a jury. *Cheff v. Schnackenberg*, 384 U. S. 373, 379 (1966).

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the question and urges us to find its practice consistent with the Sixth Amendment. By contrast, the dissent doesn't try to defend Louisiana's law on Sixth or Fourteenth Amendment grounds; tacitly, it seems to admit that the Constitution forbids States from using nonunanimous juries. Yet, unprompted by Louisiana, the dissent suggests our precedent requires us to rule for the State anyway. What explains all this? To answer the puzzle, it's necessary to say a bit more about the merits of the question presented, the relevant precedent, and, at last, the consequences that follow from saying what we know to be true.

## I

The Sixth Amendment promises that “[i]n all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law.” The Amendment goes on to preserve other rights for criminal defendants but says nothing else about what a “trial by an impartial jury” entails.

Still, the promise of a jury trial surely meant *something*—otherwise, there would have been no reason to write it down. Nor would it have made any sense to spell out the places from which jurors should be drawn if their powers as jurors could be freely abridged by statute. Imagine a constitution that allowed a “jury trial” to mean nothing but a single person rubberstamping convictions without hearing any evidence—but simultaneously insisting that the lone juror come from a specific judicial district “previously ascertained by law.” And if that's not enough, imagine a constitution that included the same hollow guarantee *twice*—not only in the Sixth Amendment, but also in Article III.<sup>8</sup> No: The text and structure of the Constitution clearly suggest that the term “trial by an impartial jury” carried with it *some* meaning about the content and requirements of a jury trial.

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<sup>8</sup> See Art. III, § 2.

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One of these requirements was unanimity. Wherever we might look to determine what the term “trial by an impartial jury” meant at the time of the Sixth Amendment’s adoption—whether it’s the common law, state practices in the founding era, or opinions and treatises written soon afterward—the answer is unmistakable. A jury must reach a unanimous verdict in order to convict.

The requirement of juror unanimity emerged in 14th-century England and was soon accepted as a vital right protected by the common law.<sup>9</sup> As Blackstone explained, no person could be found guilty of a serious crime unless “the truth of every accusation . . . should . . . be confirmed by the unanimous suffrage of twelve of his equals and neighbours, indifferently chosen, and superior to all suspicion.”<sup>10</sup> A “‘verdict, taken from eleven, was no verdict’” at all.<sup>11</sup>

This same rule applied in the young American States. Six State Constitutions explicitly required unanimity.<sup>12</sup> Another four preserved the right to a jury trial in more general terms.<sup>13</sup> But the variations did not matter much; consistent

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<sup>9</sup> See J. Thayer, *Evidence at the Common Law* 86–90 (1898) (Thayer); W. Forsyth, *History of Trial by Jury* 200 (J. Morgan ed., 2d ed. 1875); 1 W. Holdsworth, *A History of English Law* 318 (rev. 7th ed. 1956); Smith, *The Historical and Constitutional Contexts of Jury Reform*, 25 *Hofstra L. Rev.* 377, 397 (1996).

<sup>10</sup> 4 W. Blackstone, *Commentaries on the Laws of England* 343 (1769).

<sup>11</sup> Thayer 88–89, n. 4 (quoting *Anonymous Case*, 41 *Lib. Assisarum* 11 (1367)); see also 1 M. Hale, *History of the Pleas of the Crown* 33 (1736).

<sup>12</sup> See Del. Declaration of Rights § 14 (1776), in 1 *The Bill of Rights: A Documentary History* 278 (1971); Md. Declaration of Rights § XIX, in 3 *Federal and State Constitutions 1688* (F. Thorpe ed. 1909) (Thorpe); N. C. Declaration of Rights § IX (1776), in 5 *id.*, at 2787; Pa. Declaration of Rights § IX (1776), in 5 *id.*, at 3083; Vt. Declaration of Rights, ch. I, § XI (1786), in 6 *id.*, at 3753; Va. Declaration of Rights § 8 (1776), in 7 *id.*, at 3813.

<sup>13</sup> See Ga. Const., Art. IV, § 3 (1789), in 2 *id.*, at 789; N. J. Const., Art. XXII (1776), in 5 *id.*, at 2598; N. Y. Const., Art. XLI (1777), in 5 *id.*, at 2637; S. C. Const., Art. IX, § 6 (1790), in 6 *id.*, at 3264.

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with the common law, state courts appeared to regard unanimity as an essential feature of the jury trial.<sup>14</sup>

It was against this backdrop that James Madison drafted and the States ratified the Sixth Amendment in 1791. By that time, unanimous verdicts had been required for about 400 years.<sup>15</sup> If the term “trial by an impartial jury” carried any meaning at all, it surely included a requirement as long and widely accepted as unanimity.

Influential, postadoption treatises confirm this understanding. For example, in 1824, Nathan Dane reported as fact that the U. S. Constitution required unanimity in criminal jury trials for serious offenses.<sup>16</sup> A few years later, Justice Story explained in his Commentaries on the Constitution that “in common cases, the law not only presumes every man innocent, until he is proved guilty; but unanimity in the verdict of the jury is indispensable.”<sup>17</sup> Similar statements can

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<sup>14</sup> See, e. g., *Commonwealth v. Bowden*, 9 Mass. 494, 495 (1813); *People v. Denton*, 2 Johns. Cas. 275, 277 (N. Y. 1801) (*per curiam*); *Commonwealth v. Fells*, 36 Va. 613, 614–615 (1838); *State v. Doon & Dimond*, 1 R. Charlton 1, 2 (Ga. Super. Ct. 1811); see also *Respublica v. Oswald*, 1 Dall. 319, 323 (Pa. 1788) (reporting Chief Justice McKean’s observations that unanimity would have been required even if the Pennsylvania Constitution had not said so explicitly).

<sup>15</sup> To be sure, a few of the Colonies had relaxed (and then restored) the unanimity requirement well before the founding. For example, during a two decade period in the late 17th century, the Carolinas experimented with a non-common law system designed to encourage a feudal social structure; this “reactionary” constitution permitted conviction by majority vote. See Carolina Const., Art. 69 (1669), in 5 Thorpe 2781; Reinsch, The English Common Law in the Early American Colonies, in 1 Select Essays in Anglo-American Legal History 367, 407 (1907). But, as Louisiana admits, by the time of the Sixth Amendment’s adoption, unanimity had again become the accepted rule. See Brief for Respondent 17.

<sup>16</sup> 6 N. Dane, Digest of American Law, ch. LXXXII, Art. 2, § 1, p. 226 (1824).

<sup>17</sup> 2 J. Story, Commentaries on the Constitution of the United States § 777, p. 248 (1833).

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be found in American legal treatises throughout the 19th century.<sup>18</sup>

Nor is this a case where the original public meaning was lost to time and only recently recovered. This Court has, repeatedly and over many years, recognized that the Sixth Amendment requires unanimity. As early as 1898, the Court said that a defendant enjoys a “constitutional right to demand that his liberty should not be taken from him except by the joint action of the court and the unanimous verdict of a jury of twelve persons.”<sup>19</sup> A few decades later, the Court elaborated that the Sixth Amendment affords a right to “a trial by jury as understood and applied at common law, . . . includ[ing] all the essential elements as they were recognized in this country and England when the Constitution was adopted.”<sup>20</sup> And, the Court observed, this includes a requirement “that the verdict should be unanimous.”<sup>21</sup> In all, this Court has commented on the Sixth Amendment’s unanimity requirement no fewer than 13 times over more than 120 years.<sup>22</sup>

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<sup>18</sup> See, e.g., J. Pomeroy, *An Introduction to Municipal Law* § 135, p. 78 (1864); J. Tiffany, *Government and Constitutional Law* § 549, p. 367 (1867); T. Cooley, *Constitutional Limitations* 319–320 (1868); 1 J. Bishop, *Criminal Procedure*, ch. LXII § 897 (rev. 2d ed. 1872).

<sup>19</sup> *Thompson v. Utah*, 170 U.S. 343, 351 (1898). See also *Maxwell v. Dow*, 176 U.S. 581, 586 (1900).

<sup>20</sup> *Patton v. United States*, 281 U.S. 276, 288 (1930).

<sup>21</sup> *Ibid.* See also *Andres v. United States*, 333 U.S. 740, 748 (1948) (“Unanimity in jury verdicts is required where the Sixth and Seventh Amendments apply”).

<sup>22</sup> In addition to *Thompson*, *Maxwell*, *Patton*, and *Andres*, see *Johnson v. Louisiana*, 406 U.S. 356, 369 (1972) (Powell, J., concurring); *United States v. Gaudin*, 515 U.S. 506, 510 (1995); *Richardson v. United States*, 526 U.S. 813, 817 (1999); *Apprendi v. New Jersey*, 530 U.S. 466, 477 (2000); *Southern Union Co. v. United States*, 567 U.S. 343, 356 (2012); *Blakely v. Washington*, 542 U.S. 296, 301–302 (2004); *United States v. Booker*, 543 U.S. 220, 233–239 (2005); *Descamps v. United States*, 570 U.S. 254, 269 (2013); *United States v. Haymond*, 588 U.S. 634, 642 (2019) (plurality opinion).

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There can be no question either that the Sixth Amendment’s unanimity requirement applies to state and federal criminal trials equally. This Court has long explained that the Sixth Amendment right to a jury trial is “fundamental to the American scheme of justice” and incorporated against the States under the Fourteenth Amendment.<sup>23</sup> This Court has long explained, too, that incorporated provisions of the Bill of Rights bear the same content when asserted against States as they do when asserted against the federal government.<sup>24</sup> So if the Sixth Amendment’s right to a jury trial requires a unanimous verdict to support a conviction in federal court, it requires no less in state court.

## II

## A

How, despite these seemingly straightforward principles, have Louisiana’s and Oregon’s laws managed to hang on for so long? It turns out that the Sixth Amendment’s otherwise simple story took a strange turn in 1972. That year, the Court confronted these States’ unconventional schemes for the first time—in *Apodaca v. Oregon*<sup>25</sup> and a companion case, *Johnson v. Louisiana*.<sup>26</sup> Ultimately, the Court could do no more than issue a badly fractured set of opinions. Four dissenting Justices would not have hesitated to strike down the States’ laws, recognizing that the Sixth Amendment requires unanimity and that this guarantee is fully applicable against the States under the Fourteenth Amendment.<sup>27</sup> But a four-

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<sup>23</sup> *Duncan v. Louisiana*, 391 U.S. 145, 148–150 (1968).

<sup>24</sup> *Malloy v. Hogan*, 378 U.S. 1, 10–11 (1964).

<sup>25</sup> 406 U.S. 404 (plurality opinion).

<sup>26</sup> 406 U.S. 356.

<sup>27</sup> See *Apodaca*, 406 U.S., at 414–415 (Stewart, J., joined by Brennan and Marshall, JJ., dissenting) (“Until today, it has been universally understood that a unanimous verdict is an essential element of a Sixth Amendment jury trial. . . . I would follow these settled Sixth Amendment precedents”); *Johnson*, 406 U.S., at 382–383, 391–393 (Douglas, J., joined by Brennan and Marshall, JJ., dissenting).

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Justice plurality took a very different view of the Sixth Amendment. These Justices declared that the real question before them was whether unanimity serves an important “function” in “contemporary society.”<sup>28</sup> Then, having re-framed the question, the plurality wasted few words before concluding that unanimity’s costs outweigh its benefits in the modern era, so the Sixth Amendment should not stand in the way of Louisiana or Oregon.

The ninth Member of the Court adopted a position that was neither here nor there. On the one hand, Justice Powell agreed that, as a matter of “history and precedent, . . . the Sixth Amendment requires a unanimous jury verdict to convict.”<sup>29</sup> But, on the other hand, he argued that the Fourteenth Amendment does not render this guarantee against the federal government fully applicable against the States. In this way, Justice Powell doubled down on his belief in “dual-track” incorporation—the idea that a single right can mean two different things depending on whether it is being invoked against the federal or a state government.

Justice Powell acknowledged that his argument for dual-track incorporation came “late in the day.”<sup>30</sup> Late it was. The Court had already, nearly a decade earlier, “rejected the notion that the Fourteenth Amendment applies to the States only a ‘watered-down, subjective version of the individual guarantees of the Bill of Rights.’”<sup>31</sup> It’s a point we’ve restated many times since, too, including as recently as last year.<sup>32</sup> Still, Justice Powell frankly explained, he was “unwillin[g]” to follow the Court’s precedents.<sup>33</sup> So he

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<sup>28</sup> *Apodaca*, 406 U. S., at 410.

<sup>29</sup> *Johnson*, 406 U. S., at 371 (concurring opinion).

<sup>30</sup> *Id.*, at 375.

<sup>31</sup> *Id.*, at 384 (Douglas, J., dissenting) (quoting *Malloy*, 378 U. S., at 10–11); *Johnson*, 406 U. S., at 395–396 (Brennan, J., dissenting) (collecting cases).

<sup>32</sup> See, e. g., *Timbs v. Indiana*, 586 U. S. 146, 150 (2019) (unanimously rejecting arguments for dual-track incorporation).

<sup>33</sup> *Johnson*, 406 U. S., at 375–376, and n. 15 (concurring opinion).

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offered up the essential fifth vote to uphold Mr. Apodaca's conviction—if based only on a view of the Fourteenth Amendment that he knew was (and remains) foreclosed by precedent.

## B

In the years following *Apodaca*, both Louisiana and Oregon chose to continue allowing nonunanimous verdicts. But their practices have always stood on shaky ground. After all, while Justice Powell's vote secured a favorable judgment for the States in *Apodaca*, it's never been clear what rationale could support a similar result in future cases. Only two possibilities exist: Either the Sixth Amendment allows non-unanimous verdicts, or the Sixth Amendment's guarantee of a jury trial applies with less force to the States under the Fourteenth Amendment. Yet, as we've seen, both bear their problems. In *Apodaca* itself, a majority of Justices—including Justice Powell—recognized that the Sixth Amendment demands unanimity, just as our cases have long said. And this Court's precedents, both then and now, prevent the Court from applying the Sixth Amendment to the States in some mutated and diminished form under the Fourteenth Amendment. So what could we possibly describe as the “holding” of *Apodaca*?

Really, no one has found a way to make sense of it. In later cases, this Court has labeled *Apodaca* an “exception,” “unusual,” and in any event “not an endorsement” of Justice Powell's view of incorporation.<sup>34</sup> At the same time, we have continued to recognize the historical need for unanimity.<sup>35</sup> We've been studiously ambiguous, even inconsistent, about

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<sup>34</sup> *McDonald v. Chicago*, 561 U.S. 742, 766, n. 14 (2010); see also *Timbs*, 586 U.S., at 150, n. 1 (quoting *McDonald*, 561 U.S., at 766, n. 14).

<sup>35</sup> *Gaudin*, 515 U.S., at 510; *Richardson*, 526 U.S., at 817; *Apprendi*, 530 U.S., at 477; *Southern Union Co.*, 567 U.S., at 356; *Blakely*, 542 U.S., at 301–302; *Booker*, 543 U.S., at 238; *Descamps*, 570 U.S., at 269; *Haymond*, 588 U.S., at 642 (plurality opinion).

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what *Apodaca* might mean.<sup>36</sup> To its credit, Louisiana acknowledges the problem. The State expressly tells us it is not “asking the Court to accord Justice Powell’s solo opinion in *Apodaca* precedential force.”<sup>37</sup> Instead, in an effort to win today’s case, Louisiana embraces the idea that everything is up for grabs. It contends that this Court has never definitively ruled on the propriety of nonunanimous juries under the Sixth Amendment—and that we should use this case to hold for the first time that nonunanimous juries are permissible in state and federal courts alike.

## III

Louisiana’s approach may not be quite as tough as trying to defend Justice Powell’s dual-track theory of incorporation, but it’s pretty close. How does the State deal with the fact this Court has said 13 times over 120 years that the Sixth Amendment *does* require unanimity? Or the fact that five Justices in *Apodaca* said the same? The best the State can offer is to suggest that all these statements came in dicta.<sup>38</sup>

<sup>36</sup> See, e. g., *Burch v. Louisiana*, 441 U. S. 130, 136, and n. 9 (1979) (describing both plurality opinion and Justice Powell’s separate writing); *Brown v. Louisiana*, 447 U. S. 323, 331 (1980) (plurality opinion) (describing neither); see also *McKoy v. North Carolina*, 494 U. S. 433, 468 (1990) (Scalia, J., dissenting) (same). On a few occasions we’ve suggested that perhaps *Apodaca* means the Sixth Amendment does not require unanimity at all. See *Ludwig v. Massachusetts*, 427 U. S. 618, 625 (1976) (quoting *Apodaca* plurality); *Gaudin*, 515 U. S., at 510–511, n. 2 (same); see also *Holland v. Illinois*, 493 U. S. 474, 511 (1990) (Stevens, J., dissenting) (same). But on another occasion, we suggested that it could make a difference whether a particular right was rooted in the Sixth Amendment’s jury trial guarantee or Fourteenth Amendment due process guarantee. See *Schad v. Arizona*, 501 U. S. 624, 634, n. 5 (1991) (plurality opinion). The dissent contends that these cases have “reiterated time and again what *Apodaca* had established.” *Post*, at 145 (opinion of ALITO, J.). More accurately, these “reiterations” have suggested different things at different times.

<sup>37</sup> See Brief for Respondent 47; Tr. of Oral Arg. 37–38.

<sup>38</sup> In at least some of these cases, that may be a fair characterization. For example, while *Thompson* was quick to say that the U. S. Constitution requires “the unanimous verdict of a jury of twelve persons,” the question

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But even supposing (without granting) that Louisiana is right and it's dicta all the way down, why would the Court now walk away from many of its own statements about the Constitution's meaning? And what about the prior 400 years of English and American cases requiring unanimity—should we dismiss all those as dicta too?

Sensibly, Louisiana doesn't dispute that the common law required unanimity. Instead, it argues that the drafting history of the Sixth Amendment reveals an intent by the framers to leave this particular feature behind. The State points to the fact that Madison's proposal for the Sixth Amendment originally read: "The trial of all crimes . . . shall be by an impartial jury of freeholders of the vicinage, with the requisite of unanimity for conviction, of the right of challenge, and other accustomed requisites. . . ." <sup>39</sup> Louisiana notes that the House of Representatives approved this text with minor modifications. Yet, the State stresses, the Senate replaced "impartial jury of freeholders of the vicinage" with "impartial jury of the State and district wherein the crime shall have been committed" and also removed the explicit references to unanimity, the right of challenge, and "other accustomed requisites." In light of these revisions, Louisiana would have us infer an intent to abandon the common law's traditional unanimity requirement.

But this snippet of drafting history could just as easily support the opposite inference. Maybe the Senate deleted the language about unanimity, the right of challenge, and "other accustomed requisites" because all this was so plainly included in the promise of a "trial by an impartial jury" that Senators considered the language surplusage.

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before the Court was whether, in the circumstances of the defendant's case, a trial by eight jurors in a Utah state court would violate the *Ex Post Facto* Clause. 170 U.S., at 351. The Sixth Amendment's unanimity requirement was unnecessary to the outcome, and the Utah Constitution required unanimity either way. *Id.*, at 345.

<sup>39</sup> 1 Annals of Cong. 435 (1789).

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The truth is that we have little contemporaneous evidence shedding light on why the Senate acted as it did.<sup>40</sup> So rather than dwelling on text left on the cutting room floor, we are much better served by interpreting the language Congress retained and the States ratified. And, as we've seen, at the time of the Amendment's adoption, the right to a jury trial *meant* a trial in which the jury renders a unanimous verdict.

Further undermining Louisiana's inference about the drafting history is the fact it proves too much. If the Senate's deletion of the word "unanimity" changed the meaning of the text that remains, then the same would seemingly have to follow for the other deleted words as well. So it's not just unanimity that died in the Senate, but all the "other accustomed requisites" associated with the common law jury trial right—*i. e.*, *everything* history might have taught us about what it means to have a jury trial. Taking the State's argument from drafting history to its logical conclusion would thus leave the right to a "trial by jury" devoid of meaning. A right mentioned twice in the Constitution would be reduced to an empty promise. That can't be right.

Faced with this hard fact, Louisiana's only remaining option is to invite us to distinguish between the historic features of common law jury trials that (we think) serve "important enough" functions to migrate silently into the Sixth Amendment and those that don't. And, on the State's account, we should conclude that unanimity isn't worthy enough to make the trip.

But to see the dangers of Louisiana's otherwise approach, there's no need to look any further than *Apodaca* itself. There, four Justices, pursuing the functionalist approach

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<sup>40</sup> In private writings, Madison did explain some of the Senate's objections with his original phrasing of the vicinage requirement. See 5 Writings of James Madison 420–424 (G. Hunt ed. 1904) (letters to E. Pendleton, Sept. 14 and 23, 1789). But this is little help in explaining the other changes made in the Senate.

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Louisiana espouses, began by describing the “‘essential’” benefit of a jury trial as “‘the interposition . . . of the commonsense judgment of a group of laymen’” between the defendant and the possibility of an “‘overzealous prosecutor.’”<sup>41</sup> And measured against that muddy yardstick, they quickly concluded that requiring 12 rather than 10 votes to convict offers no meaningful improvement.<sup>42</sup> Meanwhile, these Justices argued, States have good and important reasons for dispensing with unanimity, such as seeking to reduce the rate of hung juries.<sup>43</sup>

Who can profess confidence in a breezy cost-benefit analysis like that? Lost in the accounting are the racially discriminatory *reasons* that Louisiana and Oregon adopted their peculiar rules in the first place.<sup>44</sup> What’s more, the plurality never explained why the promised benefit of abandoning unanimity—reducing the rate of hung juries—always scores as a credit, not a cost. But who can say whether any particular hung jury is a waste, rather than an example of a jury doing exactly what the plurality said it should—deliberating carefully and safeguarding against overzealous

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<sup>41</sup> 406 U.S., at 410 (plurality opinion) (quoting *Williams v. Florida*, 399 U.S. 78, 100 (1970), and *Duncan*, 391 U.S., at 156).

<sup>42</sup> 406 U.S., at 410–411.

<sup>43</sup> *Id.*, at 411.

<sup>44</sup> The dissent chides us for acknowledging the racist history of Louisiana’s and Oregon’s laws, and commends the *Apodaca* plurality’s decision to disregard these facts. *Post*, at 141–144, 153. But if the Sixth Amendment calls on judges to assess the functional benefits of jury rules, as the *Apodaca* plurality suggested, how can that analysis proceed to ignore the very functions those rules were adopted to serve? The dissent answers that Louisiana and Oregon eventually recodified their nonunanimous jury laws in new proceedings untainted by racism. See *post*, at 142–143, n. 3. But that cannot explain *Apodaca*’s omission: The States’ proceedings took place only *after* the Court’s decision. Nor can our shared respect for “rational and civil discourse,” *post*, at 144, supply an excuse for leaving an uncomfortable past unexamined. Still, the dissent is right about one thing—a jurisdiction adopting a nonunanimous jury rule even for benign reasons would still violate the Sixth Amendment.

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prosecutions? And what about the fact, too, that some studies suggest that the elimination of unanimity has only a small effect on the rate of hung juries?<sup>45</sup> Or the fact that others profess to have found that requiring unanimity may provide other possible benefits, including more open-minded and more thorough deliberations?<sup>46</sup> It seems the *Apodaca* plurality never even conceived of such possibilities.

Our real objection here isn't that the *Apodaca* plurality's cost-benefit analysis was too skimpy. The deeper problem is that the plurality subjected the ancient guarantee of a unanimous jury verdict to its own functionalist assessment in the first place. And Louisiana asks us to repeat the error today, just replacing *Apodaca*'s functionalist assessment with our own updated version. All this overlooks the fact that, at the time of the Sixth Amendment's adoption, the right to trial by jury *included* a right to a unanimous verdict. When the American people chose to enshrine that right in the Constitution, they weren't suggesting fruitful topics for future cost-benefit analyses. They were seeking to ensure that their children's children would enjoy the same hard-won liberty they enjoyed. As judges, it is not our role to reassess whether the right to a unanimous jury is "important enough" to retain. With humility, we must accept that this right may serve purposes evading our current notice. We are entrusted to preserve and protect that liberty, not balance it away aided by no more than social statistics.<sup>47</sup>

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<sup>45</sup> See H. Kalven & H. Zeisel, *The American Jury* 461 (1966); Diamond, Rose, & Murphy, *Revisiting the Unanimity Requirement: The Behavior of the Non-unanimous Civil Jury*, 100 Nw. U. L. Rev. 201, 207–208 (2006).

<sup>46</sup> Devine et al., *Jury Decision Making: 45 Years of Empirical Research on Deliberating Groups*, 7 Psych. Pub. Pol'y & L. 622, 669 (2001); R. Hastie, S. Penrod, & N. Pennington, *Inside the Jury* 115, 164–165 (1983); Hans, *The Power of Twelve: The Impact of Jury Size and Unanimity on Civil Jury Decision Making*, 4 Del. L. Rev. 1, 24–25 (2001).

<sup>47</sup> The dissent seems to suggest that we must abandon the Sixth Amendment's historical meaning in favor of *Apodaca*'s functionalism because a parade of horrors would follow otherwise. In particular, the dissent re-

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## IV

## A

If Louisiana’s path to an affirmance is a difficult one, the dissent’s is trickier still. The dissent doesn’t dispute that the Sixth Amendment protects the right to a unanimous jury verdict, or that the Fourteenth Amendment extends this right to state-court trials. But, it insists, we must affirm Mr. Ramos’s conviction anyway. Why? Because the doctrine of *stare decisis* supposedly commands it. There are two independent reasons why that answer falls short.

In the first place and as we’ve seen, not even Louisiana tries to suggest that *Apodaca* supplies a governing precedent. Remember, Justice Powell agreed that the Sixth Amendment requires a unanimous verdict to convict, so he would have no objection to that aspect of our holding today.

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minds us that, at points and places in our history, women were not permitted to sit on juries. See *post*, at 153–154. But we hardly need *Apodaca*’s functionalism to avoid repeating that wrong. Unlike the rule of unanimity, rules about who qualified as a defendant’s “peer” varied considerably at common law at the time of the Sixth Amendment’s adoption. Reflecting that fact, the Judiciary Act of 1789—adopted by the same Congress that passed the Sixth Amendment—initially pegged the qualifications for federal jury service to the relevant state jury qualification requirements. 1 Stat. 88. As a result, for much of this Nation’s early history the composition of federal juries varied both geographically and over time. See Hickey, Federal Legislation: Improvement of the Jury System in Federal Courts, 35 Geo. L. J. 500, 506–507 (1947); *Taylor v. Louisiana*, 419 U. S. 522, 536 (1975). Ultimately, however, the people themselves adopted further constitutional amendments that prohibit invidious discrimination. So today the Sixth Amendment’s promise of a jury of one’s peers means a jury selected from a representative cross-section of the entire community. See *Strauder*, 100 U. S., at 307–308; *Smith v. Texas*, 311 U. S. 128, 130 (1940); *Taylor*, 419 U. S., at 527.

Relatedly, the dissent suggests that, before doing anything here, we should survey all changes in jury practices since 1791. See *post*, at 154–155, n. 26. It sounds like an interesting study—but not one that could alter the plain meaning of the Constitution or oblivate its undisputed unanimity requirement.

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Justice Powell reached a different result only by relying on a dual-track theory of incorporation that a majority of the Court had already rejected (and continues to reject). And to accept *that* reasoning as precedential, we would have to embrace a new and dubious proposition: that a single Justice writing only for himself has the authority to bind this Court to propositions it has already rejected.

This is not the rule, and for good reason—it would do more to destabilize than honor precedent. To see how, consider a hypothetical. Suppose we face a question of first impression under the Fourth Amendment: whether a State must obtain a warrant before reading a citizen’s email in the hands of an Internet provider and using that email as evidence in a criminal trial. Imagine this question splits the Court, with four Justices finding the Fourth Amendment requires a warrant and four Justices finding no such requirement. The ninth Justice agrees that the Fourth Amendment requires a warrant, but takes an idiosyncratic view of the consequences of violating that right. In her view, the exclusionary rule has gone too far, and should only apply when the defendant is prosecuted for a felony. Because the case before her happens to involve only a misdemeanor, she provides the ninth vote to affirm a conviction based on evidence secured by a warrantless search. Of course, this Court has longstanding precedent requiring the suppression of all evidence obtained in unconstitutional searches and seizures. *Mapp v. Ohio*, 367 U. S. 643 (1961). But like Justice Powell, our hypothetical ninth Justice sticks to her view and expressly rejects this Court’s precedent. Like Justice Powell, this Justice’s vote would be essential to the judgment. So if, as the dissent suggests, *that* is enough to displace precedent, would *Mapp*’s exclusionary rule now be limited to felony prosecutions?

Admittedly, this example comes from our imagination. It has to, because no case has before suggested that a single Justice may overrule precedent. But if the Court were to embrace the dissent’s view of *stare decisis*, it would not stay

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imaginary for long. Every occasion on which the Court is evenly split would present an opportunity for single Justices to overturn precedent to bind future majorities. Rather than advancing the goals of predictability and reliance lying behind the doctrine of *stare decisis*, such an approach would impair them.

The dissent contends that, in saying this much, we risk defying *Marks v. United States*.<sup>48</sup> According to *Marks*, when “a fragmented Court decides a case and no single rationale explaining the result enjoys the assent of five Justices, ‘the holding of the Court may be viewed as that position taken by those Members who concurred in the judgments on the narrowest grounds.’”<sup>49</sup> But notice that the dissent never actually gets around to telling us which opinion in *Apodaca* it considers to be the narrowest and controlling one under *Marks*—or why. So while the dissent worries that we defy a *Marks* precedent, it is oddly coy about where exactly that precedent might be found.

The parties recognize what the dissent does not: *Marks* has nothing to do with this case. Unlike a *Marks* dispute where the litigants duel over which opinion represents the narrowest and controlling one, the parties before us accept that *Apodaca* yielded no controlling opinion at all. In particular, both sides admit that Justice Powell’s opinion cannot bind us—precisely because he relied on a dual-track rule of incorporation that an unbroken line of majority opinions before and after *Apodaca* has rejected. Still, the dissent presses the issue, suggesting that a single Justice’s opinion *can* overrule prior precedents under “the logic” of *Marks*.<sup>50</sup> But, as the dissent itself implicitly acknowledges, *Marks* never sought to offer or defend such a rule. And, as we have seen, too, a rule like that would do more to harm than advance *stare decisis*.

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<sup>48</sup> 430 U. S. 188 (1977).

<sup>49</sup> *Id.*, at 193.

<sup>50</sup> *Post*, at 149.

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The dissent's backup argument fares no better. In the end, even the dissent is forced to concede that Justice Powell's *reasoning* in *Apodaca* lacks controlling force.<sup>51</sup> So far, so good. But then the dissent suggests *Apodaca* somehow still manages to supply a controlling precedent as to its *result*.<sup>52</sup> Look closely, though. The dissent's account of *Apodaca*'s *result* looks suspiciously like the *reasoning* of Justice Powell's opinion: "In *Apodaca*, this means that when (1) a defendant is convicted in state court, (2) at least 10 of the 12 jurors vote to convict, and (3) the defendant argues that the conviction violates the Constitution because the vote was not unanimous, the challenge fails."<sup>53</sup> Where does the convenient "state court" qualification come from? Neither the *Apodaca* plurality nor the dissent included any limitation like that—their opinions turned on the meaning of the Sixth Amendment. What the dissent characterizes as *Apodaca*'s result turns out to be nothing more than Justice Powell's reasoning about dual-track incorporation dressed up to look like a logical proof.

All of this does no more than highlight an old truth. It is usually a judicial decision's reasoning—its *ratio decidendi*—that allows it to have life and effect in the disposition of future cases.<sup>54</sup> As this Court has repeatedly explained in the

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<sup>51</sup> *Post*, at 150.

<sup>52</sup> *Post*, at 147.

<sup>53</sup> *Ibid.* See also *post*, at 125, n. 6 (KAVANAUGH, J., concurring in part) (offering the same argument by contending that "[t]he result of *Apodaca*" means "state criminal juries need not be unanimous").

<sup>54</sup> See J. Salmond, *Jurisprudence* § 62, p. 191 (G. Williams ed., 10th ed. 1947) ("The concrete decision is binding between the parties to it, but it is the abstract *ratio decidendi* which alone has the force of law as regards the world at large"); F. Schauer, *Precedent*, in *Routledge Companion to Philosophy of Law* 129 (A. Marmor ed. 2012) ("[T]he traditional answer to the question of what is a precedent is that subsequent cases falling within the *ratio decidendi*—or *rationale*—of the precedent case are controlled by that case"); N. Duxbury, *The Nature and Authority of Precedent* 65–66 (2008).